



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 7, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202102983 regarding Police Officer Erick Clarck, Tax No. 952593 (DADS No. 2022-27106)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Clarck do not rise to the level of actionable misconduct. In this matter, Police Officer Clarck told the complainant's brother "You're interfering with my investigation, so if you don't want to be in cuffs – in handcuffs, just do me a favor and be quiet." CCRB substantiated an allegation of improper threat to arrest against Police Officer Clarck for the aforementioned statement.

After a review of the video evidence, it was clear that Police Officer Clarck was conducting an investigation into the complainant's vehicle and was questioning the complainant on whether the tinted windows were dealer produced or modified by the complainant. The complainant, while generally cooperative with Police Officer Clarck was yelling vitriol at another officer, making the investigation difficult to conduct. The complainant's brother arrived on the scene and was told that he could remain on the scene, but to provide some distance so the officers could finish their investigation. Police Officer Clarck only made the statement to the complainant's brother after he began to walk towards Police Officer Clarck and began to interject as Police Officer Clark was attempting to conduct an investigation. Police Officer Clarck had a good faith belief that the complainant's brother was interfering with his ability to conduct an investigation and made his statements to the complainant's brother as a warning that further interference could potentially subject him to an arrest.

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Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Clark receive no disciplinary action for the alleged violation of Patrol Guide Procedure 208-01 (Law of Arrest).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'DLS', with a stylized flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office